

Smt. Manjula Devi K K vs Sri. Jagadeesh R T on 15 February, 2023

Author: Alok Aradhe

Bench: Alok Aradhe

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M.F.A.No.5466 of 2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 15TH DAY OF FEBRUARY, 2023

PRESENT

THE HON'BLE MR JUSTICE ALOK ARADHE

AND

THE HON'BLE MR JUSTICE VIJAYKUMAR A PATIL

M.F.A. NO.5466 OF 2016 (FC)

BETWEEN:

SMT. MANJULA DEVI K.K,
W/O JAGADEESH R.T,
AGED ABOUT 38 YEARS,
R/AT KARIBEERANAHOSAHALLI,
JADIGENAHALLI HOBLI,
HOSAKOTE TALUK, BENGALURU RURAL DISTRICT.
ALSO AT FDA-CUM-SUPERINTENDENT
ASST.DIRECTOR OF AGRICULTURE,
DEVANAHALLI,
BENGALURU RURAL DISTRICT.

...APPELLANT

(BY SRI. M.S. VARADARAJAN ADVOCATE)

Digitally
signed by
GAYATHRI N
Location:

AND:

HIGH
COURT OF
KARNATAKA

SRI. JAGADEESH R.T,
S/O THIMMARAYAPPA,
AGED ABOUT 40 YEARS,
R/AT NO. 36, 2ND MAIN,
BSK 3rd STAGE,
NEAR HARI VIJAYA APARTMENTS,
BENGALURU-560085.

. . .RESPONDENT

(BY SRI. CHANDRAHARA RAI ADVOCATE FOR RESPONDENT)

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M.F.A.No.5466 of 2016

THIS M.F.A IS FILED UNDER ARTICLE U/S 19(1) OF FAMILY COURTS ACT, 1984 PRAYING TO a) CALL FOR THE RECORDS IN M.C. NO. 4860/2013 FROM THE COURT OF IV ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT AT BENGALURU. b) TO SET ASIDE THE JUDGMENT DATED 30.06.2016 IN M.C.NO.4860/2013 PASSED BY THE COURT OF IV ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT AT BENGALURU. c) TO AWARD COST OF THIS APPEAL AND d) TO PASS SUCH OTHER ORDER OR ORDERS AS THIS HON'BLE COURT DEEMS FIT TO GRANT IN THE CIRCUMSTANCES OF THE CASE IN THE INTEREST OF JUSTICE AND EQUITY.

THIS APPEAL COMING ON FOR HEARING THIS DAY,
VIJAYKUMAR A PATIL .J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal has been filed under Section 19(1) of the Family Courts Act, 1984 against the judgment and decree dated 30.06.2016 passed by the Family Court by which the petition filed by the respondent husband seeking dissolution of marriage on the ground of cruelty and desertion has been allowed.

2. Facts giving rise to filing of this appeal in brief are that:

The marriage between the parties was solemnized on 07.05.2009 at Sri Tirumala Kalyana Mantapa, Malur, Kolar District, as per the Hindu rites and customs. The respondent husband has filed petition seeking dissolution of marriage. The petition averments are that after marriage appellant came to the matrimonial home and started residing with the husband in Bengaluru, and out of the wedlock there were no issues. It was further averred that appellant wife did not show any interest to stay with the respondent husband and during her visit to respondent's parents house, she did not look after the respondent husband properly and she insisted that respondent husband should not bring his parents and relatives to the home. It was further averred that appellant wife always expressed unwillingness about the marital life and used to speak about spiritual life, read spiritual books and used to tell that she wanted to become a saint.

3. The respondent husband has further averred that appellant wife is a government servant and she frequently used to visit her parents house and stay months together with them without any

intimation to the respondent husband. It was further averred that appellant wife left the matrimonial home during the month of June 2011 voluntarily, without intimation to the respondent husband nor to the family members and thereafter, she started living with her parents. It was further averred that appellant wife despite advise and request, failed to join the matrimonial home and failed to perform her duties as a wife. It was further averred that respondent-husband and his family members made several attempts through panchayat with the help of elders and well wishers to get the appellant wife back to the matrimonial home, but the appellant wife refused to heed to such advice.

4. The appellant wife has entered appearance before the Family Court and filed objections, in which the relationship between the parties was admitted. It was also admitted that appellant was working as a government servant. She has denied other averments made in the petition. She has averred that she intends to live with the petitioner as a dutiful wife and not willing to get divorce from him, as she is keen to lead happy married life with the husband. It was further averred that she being a government servant was required to travel daily from Bengaluru to Devanahalli and respondent husband was not co-operating with her and insisted to give up her job and when she denied to do so, the husband has filed petition seeking for dissolution of marriage on false grounds against her, therefore, she prayed for dismissal of the petition.

5. The Family Court after framing issues recorded evidence of the parties. The respondent husband got examined himself as PW.1 and got marked the documents Exs.P1 and P2, whereas the appellant wife examined herself as RW.1 and no documents were marked on her behalf. The Family Court vide judgment 30.06.2016 has allowed the petition filed under Section 13(1)(ia) and (ib) of the Hindu Marriage Act, on the ground of cruelty and desertion.

6. Learned counsel for the appellant submits that the impugned judgment and decree is not in accordance with law and the same is passed without application of mind and without considering the facts of the case, which has resulted in passing erroneous judgment. It was further contended that Family Court has wrongly come to the conclusion that appellant is not interested to live with the respondent husband, even though she has clearly stated in her objections and evidence that she wanted to join the husband. It was further contended that Family Court has erred in stating that appellant did not examine any independent evidence to show that respondent husband has ill treated the appellant and unable to bear the ill treatment, she has deserted the respondent husband.

7. It was further contended that Family Court only on the basis of oral evidence has come to the conclusion that there is cruelty and desertion on the part of the appellant and further contended that Family Court has given reasoning that appellant has not filed any petition for restitution of conjugal rights nor caused any legal notice to the respondent husband, to take her back to the matrimonial home since June 2011 till date. The said finding is not justified in law.

8. Learned counsel for the respondent reiterates the averments made in the petition and supports the judgment of the Family Court and seeks for dismissal of the appeal.

9. We have considered the submissions made by learned counsels for the appellant as well as the respondent. Perused the entire records.

10. Admittedly the appellant and respondent are wife and husband, their marriage was solemnized on 07.05.2009 as per the Hindu rites and customs. From the wedlock they have no issues. After marriage they started residing in Bangalore. It is also not in dispute that appellant wife is working as Government Servant and she used to go to her work place from the matrimonial home. On perusal of evidence of PW.1, it is clear that during the stay of appellant with the respondent, the appellant did not behave like a dutiful wife, she used to frequently visit her parents house and was not looking after him properly and also instructed him not to bring his parents to the matrimonial home and she has expressed unwillingness with regard to the married life and she wanted to become saint and stay alone. In support of his evidence the respondent husband has produced two documents. In the cross examination, she could not elicit any admission from the husband that he has ill treated the appellant wife, which has resulted in the appellant going away from the matrimonial home in June 2011. It is evident that appellant has left matrimonial home in June 2011 without any reason and no attempts have been made to return back. The appellant examined herself as RW.1 and reiterated the averments made in the statement of objections and in cross-examination. It is admitted that she is staying with her parents and she has denied that she was not interested to marry the respondent. She has stated that she is interested to lead marital life with the respondent husband and it was admitted that she has not filed any petition for restitution of conjugal rights nor caused a legal notice to take her back to matrimonial home from June 2011 till date.

11. It is well settled in law, a petition seeking for decree of divorce on the ground of desertion, must establish that either of the spouse has intentionally abandoned another spouse without the consent of the other and without reasonable cause, which has resulted in separation and brings cohabitation to a permanent end. It will be useful to refer the decision of the Hon'ble Supreme Court in DEBANANDA TAMULI Vs. KAKUMONI KATAKY (2022) 5 SCC 459. In the instant case, the appellant wife deserted the respondent husband, which has resulted in permanently ending cohabitation.

12. The Hon'ble Supreme Court in the case of SAMAR GHOSH VS. JAYA GHOSH (2007) 4 SCC 511 has held that no uniform standard can ever be laid down for guidance dealing with the cases of mental cruelty and

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some of the illustrative instances are indicated at para 101

(i) to (xiv) which reads as follows:-

"101. (i)..... to
(xii).....

(xiv) Where there has been a long period of continuous separation, it may fairly be concluded that the matrimonial bond is beyond repair. The marriage becomes a fiction though supported by a legal tie. By refusing to sever that tie, the law in such cases, does not serve the sanctity of marriage;

on the contrary, it shows scant regard for the feelings and emotions of the parties. In such like situations, it may lead to mental cruelty." In the instant case, the appellant wife has deserted the respondent husband from June 2011 and no attempts were made to rejoin, which clearly establishes that there has been a long period of continuous separation and the matrimonial bond is beyond repair.

13. A perusal of the pleading and evidence on record, makes it clear that appellant has not placed any convincing evidence to show that she has left the

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matrimonial home in June 2011 for justifiable reasons. It is very much clear that appellant has not made any attempt to rejoin the respondent husband since June 2011, but has left the respondent husband without discharging matrimonial obligation and without any fault of the respondent husband.

14. The conduct of the appellant from June 2011 amounts to mental cruelty towards the respondent husband. The evidence on record establishes the fact that appellant is not interested in marital life for one or the other reason. The appellant wife has left the matrimonial home voluntarily and without any reasons. No spouse can be expected to lead life without another spouse in the normal circumstances. The conduct of the appellant towards the respondent amounts to mental cruelty, even after filing of the petition for dissolution of marriage, no attempt has been made by the appellant to rejoin the matrimonial home, which amounts to mental cruelty. The appellant has deserted the respondent husband voluntarily

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for more than two years preceding the filing of petition for dissolution of marriage. Thus grounds for cruelty and dissolution of marriage is made out.

For the aforesaid reasons, the appeal being devoid of merit is accordingly dismissed.

Sd/-

JUDGE Sd/-

JUDGE NG CT: SV